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Title 33 —Navigation and Navigable Waters

Chapter I —Coast Guard, Department of Homeland Security

Subchapter P —Ports and Waterways Safety

Part 162 Inland Waterways Navigation Regulations

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PART 162—INLAND WATERWAYS NAVIGATION REGULATIONS

Authority: 46 U.S.C. 70034; DHS Delegation No. 00170.1, Revision No. 01.3.

Source: CGD 75-082, 42 FR 51759, Sept. 29, 1977, unless otherwise noted.

Editorial Note: Nomenclature changes to part 162 appear by USCG-2025-0186, 90 FR 12238, Mar. 17, 2025, and by USCG-2025-0716, 90 FR 47586, Oct. 2, 2025.

§ 162.1 General.

Geographic coordinates expressed in terms of latitude or longitude, or both, are not intended for plotting on maps or charts whose referenced horizontal datum is the North American Datum of 1983 (NAD 83), unless such geographic coordinates are expressly labeled NAD 83. Geographic coordinates without the NAD 83 reference may be plotted on maps or charts referenced to NAD 83 only after application of the appropriate corrections that are published on the particular map or chart being used.

[CGD 86-082, 52 FR 33811, Sept. 8, 1987]

§ 162.5 Definitions.

The following definition applies to this part:

Merchant mariner credential or MMC means the credential issued by the Coast Guard under 46 CFR part 10. It combines the individual merchant mariner's document, license, and certificate of registry enumerated in 46 U.S.C. subtitle II part E as well as the STCW endorsement into a single credential that serves as the mariner's qualification document, certificate of identification, and certificate of service.

[USCG-2006-24371, 74 FR 11212, Mar. 16, 2009]

§ 162.15 Manhasset Bay, N.Y.; seaplane restricted area.

- (a) *The restricted area.* An area in Manhasset Bay between the shore at Manorhaven on the north and the southerly limit line of the special anchorage area in Manhasset Bay, west area at Manorhaven (described in § 110.60 of this chapter), on the south; its axis being a line bearing 166°50' true from latitude 40°50'17.337 N, longitude 73°43'03.877 W, which point is on the south side of Orchard Beach Boulevard at Manorhaven; and being 100 feet wide for a distance of 380 feet in a southerly direction from the south side of Orchard Beach Boulevard, and thence flaring to a width of 300 feet at the southerly limit line.
- (b) *The regulations.*
 - (1) Vessels shall not anchor or moor within the restricted area.
 - (2) All vessels traversing the area shall pass directly through without unnecessary delay, and shall give seaplanes the right-of-way at all times.

[CGD 75-082, 42 FR 51759, Sept. 29, 1977, as amended by USCG-2008-0179, 73 FR 35016, June 19, 2008]

§ 162.20 Flushing Bay near La Guardia Airport, Flushing, N.Y.; restricted area.

- (a) *The area.* An area in the main channel in Flushing Bay extending for a distance of 300 feet on either side of the extended center line of Runway No. 13-31 at La Guardia Airport.
- (b) *The regulations.*
 - (1) All vessels traversing the area shall pass directly through without unnecessary delay.
 - (2) No vessels having a height of more than 35 feet with reference to the plane of mean high water shall enter or pass through the area whenever visibility is less than one mile.

[CGD 75-082, 42 FR 51759, Sept. 29, 1977, as amended by USCG-2011-0257, 76 FR 31838, June 2, 2011]

§ 162.30 Channel of Tuckerton Creek, N.J.; navigation.

- (a) Power boats or other vessels propelled by machinery shall not proceed at any time within the limits of these waters at a greater speed than 8 statute miles per hour.

§ 162.35 Channel of Christina River, Del.; navigation.

- (a) That vessels of over 20 tons capacity, propelled by machinery, shall not proceed at any time within the limits of these waters at a greater speed than 8 statute miles per hour.

§ 162.40 Inland waterway from Delaware River to Chesapeake Bay, Del. and Md. (Chesapeake and Delaware Canal).

- (a) **Applicability.** The regulations in this section are applicable to that part of the inland waterway from Delaware River to Chesapeake Bay, Del. and Md., between Reedy Point, Delaware River, and Old Town Point Wharf, Elk River.
- (b) **Speed.** No vessel in the waterway shall be raced or crowded alongside another vessel. Vessels of all types, including pleasure craft, are required to travel at all times at a safe speed throughout the canal and its approaches so as to avoid damage by suction or wave wash to wharves, landings, riprap protection, or other boats, or injury to persons. Pilots and vessel operators transiting the canal and its approaches are warned that violation of this rule may result in having their privilege to transit the canal suspended. Passages of vessels through the canal will be monitored and specific cases will be investigated where damage by suction or wave wash does occur. Owners and operators of yachts, motorboats, rowboats and other craft are cautioned that large deep draft ocean-going vessels and other large commercial vessels ply the canal, and such owners and operators should be particularly careful to moor or anchor well away from the main ship channels, with moorings and lines which are sufficient and proper.
- (c) **Right-of-way.** All vessels proceeding with the current shall have the right-of-way over those proceeding against the current. Large vessels or tows must not overtake and attempt to pass other large vessels or tows in the waterway. All small pleasure craft shall relinquish the right-of-way to deeper draft vessels, which have a limited maneuvering ability due to their draft and size.
- (d) **Stopping in waterway.** Vessels will not be permitted to stop or anchor in the ship channel.
- (e) **Water skiing.** Water skiing in the waterway is prohibited between Reedy Point and Welch Point.
- (f) **Sailboats.** Transiting the canal by vessels under sail is not permitted between Reedy Point and Welch Point.

Note: The Corps of Engineers also has regulations dealing with this section in 33 CFR part 207.

§ 162.65 All waterways tributary to the Atlantic Ocean south of Chesapeake Bay and all waterways tributary to the Gulf of America east and south of St. Marks, Fla.

- (a) **Description.** This section applies to the following:
 - (1) **Waterways.** All navigable waters of the United States, natural or artificial, including bays, lakes, sounds, rivers, creeks, intracoastal waterways, as well as canals and channels of all types, which are tributary to or connected by other waterways with the Atlantic Ocean south of Chesapeake Bay or with the Gulf of America east and south of St. Marks, Florida.
 - (2) **United States property.** All river and harbor lands owned by the United States in or along the waterways described in paragraph (a)(1) of this paragraph, including lock sites and all structures thereon, other sites for Government structures and for the accommodation and use of employees of the United States, and rights of way and spoil disposal areas to the extent of Federal interest therein.
 - (3) **Vessels and rafts.** The term "vessel" as used in this section includes all floating things moved over these waterways other than rafts.
- (b) **Waterways—**

- (1) **Fairway.** A clear channel shall at all times be left open to permit free and unobstructed navigation by all types of vessels and rafts that normally use the various waterways or sections thereof. The District Commander may specify the width of the fairway required in the various waterways under his charge.
- (2) **Stoppage in waterway, anchorage or mooring.**
 - (i) No vessels or rafts shall anchor or moor in any of the land cuts or other narrow parts of the waterway, except in case of an emergency. Whenever it becomes necessary for a vessel or raft to stop in any such portions of the waterway it shall be securely fastened to one bank and as close to the bank as possible. This shall be done only at such a place and under such conditions as will not obstruct or prevent the passage of other vessels or craft. Stoppages shall be only for such periods as may be necessary.
 - (ii) No vessel or raft will be allowed to use any portion of the fairway as a mooring place except temporarily as authorized above without the written permission from the District Commander.
 - (iii) When tied up, all vessels must be moored by bow and stern lines. Rafts and tows shall be secured at sufficiently close intervals to insure their not being drawn away from the bank by winds, currents or the suction of passing vessels. Tow lines shall be shortened so that the different parts of the tow shall be as close together as possible. In narrow sections, no vessel or raft shall be tied abreast of another.
 - (iv) Lights shall be displayed in accordance with provisions of the Navigation Rules (33 CFR Subchapter E).
 - (v) No vessel, even if fastened to the bank as prescribed in paragraph (b)(2)(i) of this section, shall be left without a sufficient crew to care for it properly.
 - (vi) Vessels will not be permitted to load or unload in any of the land cuts except as a regular established landing or wharf without written permission secured in advance from the District Commander.
 - (vii) No vessel, regardless of size, shall anchor in a dredged channel or narrow portion of a waterway for the purpose of fishing, if navigation is obstructed, thereby.
 - (viii) Except in cases of emergency the dropping of anchors, weights, or other ground tackle, within areas occupied by submarine cable or pipe crossings, is prohibited. Such crossings will ordinarily be marked by signboards on each bank of the shore or indicated on coast charts.
- (3) **Speed.**
 - (i) Vessels shall proceed at a speed which will not endanger other vessels or structures and will not interfere with any work in progress incident to maintaining, improving, surveying or marking the channel.
 - (ii) Official signs indicating limiting speeds through critical portions of the waterways shall be strictly obeyed.
 - (iii) Vessels approaching and passing through a bridge shall so govern their speed as to insure passage through the bridge without damage to the bridge or its fenders.
- (4) **Assembly and handling of tows.**

- (i) All vessels drawing tows and equipped with rudders shall use two tow lines or a bridle and shorten them to the greatest possible extent so as to have full control at all times. The various parts of a tow shall be securely assembled with the individual units connected by lines as short as practicable. If necessary, as in the case of lengthy or cumbersome tows or tows in restricted channels, the District Commander may require that tows be broken up and may require the installation of a rudder, drag or other approved steering device on the tow in order to avoid obstructing navigation or damaging the property of others, including aids to navigation maintained by the United States or under its authorization, by collision or otherwise.
 - (ii) No tow shall be drawn by a vessel that has insufficient power or crew to permit ready maneuverability and safe handling.
 - (iii) Tows desiring to pass a bridge shall approach the opening along the axis of the channel so as to pass through without danger of striking the bridge or its fenders. No vessel or tow shall navigate through a drawbridge until the movable span is fully opened.
 - (iv) In the event that it is evident to the master of a towing vessel that a tow cannot be safely handled through a bridge, it will be brought to anchor and the towed vessels will be taken through the bridge in small units, or singly if necessary, or the tow will wait until navigation conditions have improved to such an extent that the tow can pass through the bridge without damage.
- (5) **Projections from vessels.** No vessel carrying a deck load which overhangs or projects over the side of said vessel, or whose rigging projects over the side of the vessel so as to endanger passing vessels, wharves or other property, will enter or pass through any of the narrow parts of the waterway.
- (6) **Meeting and passing.** Vessels, on meeting or overtaking, shall give the proper signals and pass in accordance with the Navigation Rules (33 CFR Subchapter E). Rafts shall give to vessels the side demanded by proper signal. All vessels approaching dredges or other plant engaged on improvements to a waterway, shall give the signal for passing and slow down sufficiently to stop if so ordered or if no answering signal is received. On receiving the answering signal, they shall then proceed to pass at a speed sufficiently slow to insure safe navigation.

Note: The Corps of Engineers also has regulations dealing with this section in 33 CFR part 207.

[CGD 75-082, 42 FR 51759, Sept. 29, 1977, as amended by CGD 93-072, 59 FR 39963, Aug. 5, 1994; USCG-2000-7223, 65 FR 40058, June 29, 2000; USCG-2015-0433, 80 FR 44282, July 27, 2015]

§ 162.75 All waterways tributary to the Gulf of America (except the Mississippi River, its tributaries, South and Southwest Passes and Atchafalaya River) from St. Marks, Fla., to the Rio Grande.

- (a) The regulations in this section shall apply to:
 - (1) **Waterways.** All navigable waters of the U.S. tributary to or connected by other waterways with the Gulf of America between St. Marks, Fla., and the Rio Grande, Tex. (both inclusive), and the Gulf Intracoastal Waterway; except the Mississippi River, its tributaries, South and Southwest Passes, and the Atchafalaya River above its junction with the Morgan City-Port Allen Route.

(2) **Bridges, wharves, and other structures.** All bridges, wharves, and other structures in or over these waterways.

(3) **Vessels.** The term "vessels" as used in this section includes all floating craft other than rafts.

(b) Waterways:

(1) A clear channel shall at all times be left open to permit free and unobstructed navigation by all types of vessels and tows normally using the various waterways covered by the regulations of this section

(2) Fairway: The District Commander may specify the width of the fairway required in the various waterways under his charge.

(3) Anchoring or mooring:

(i) Vessels or tows shall not anchor or moor in any of the land cuts or other narrow parts of the waterway, except in an emergency, or with permission of the District Commander. Whenever it becomes necessary for a vessel or tow to stop in any such portions of the waterway, it shall be securely fastened to one bank and as close to the bank as possible. This shall be done only at such a place and under such conditions as will not obstruct or prevent the passage of other vessels or tows. Stoppages shall be only for such periods as may be necessary.

(ii) When tied up individually, all vessels and tows shall be moored by bow and stern lines. Tows shall be secured at sufficiently frequent intervals to insure their not being drawn away from the bank by winds, currents, or the suction of passing vessels. Lines shall be shortened so that the various barges in a tow will be as close together as possible.

(iii) Lights shall be displayed in accordance with provisions of the Inland Navigation Rules (33 CFR Subchapter E).

(iv) Whenever any vessel or tow is moored to the bank (paragraph (b)(3)(i) of this section) at least one crew member shall always remain on board to see that proper signals are displayed and that the vessel or tow is properly moored at all times.

(v) No vessel, regardless of size, shall anchor in a dredged channel or narrow portion of a waterway for the purpose of fishing if navigation is obstructed thereby.

(4) Speed: Speeding in narrow sections is prohibited. Official signs indicating limited speeds shall be obeyed. Vessels shall reduce speed sufficiently to prevent damage when passing other vessels or structures in or along the waterway.

(5) Size, assembly, and handling of tows:

(i) On waterways 150 feet wide or less, tows which are longer than 1,180 feet, including the towing vessel, but excluding the length of the hawser, or wider than one-half of the bottom width of the channel or 55 feet, whichever is less will not be allowed, except when the District Commander has given special permission or the waterway has been exempted from these restrictions by the District Commander. Before entering any narrow section of the Gulf Intracoastal Waterway, tows in excess of one-half the channel width, or 55 feet, will be required to stand by until tows which are less than one-half the channel width or 55 feet wide have cleared the channel. When passing is necessary in narrow channels, overwidth tows shall yield to the maximum. Separate permission must be received from the District Commander for each overlength or overwidth movement. In addition, the following exceptions are allowed:

- (ii) Gulf Intracoastal Waterway—Between mile 6.2 EHL (Inner Harbor Navigation Canal Lock) and mile 33.6 EHL tows of 78 feet in width will be allowed.
- (iii) Gulf Intercoastal Waterway—Between mile 33.6 EHL and the Mobile Bay Ship Channel, tows of 108 feet in width will be allowed if under 750 feet in length including the towboat but excluding the length of the hawser.
- (iv) Gulf Intracoastal Waterway—Mobile Bay Ship Channel to St. Marks, Fla., for tows made up of empty barges on the off or shallow side, a width of 75 feet will be allowed.
- (v) All vessels pulling tows not equipped with rudders in restricted channels and land cuts shall use two towlines, or a bridle on one towline, shortened as much as safety of the towing vessel permits, so as to have maximum control at all times. The various parts of a tow shall be securely assembled with the individual units connected by lines as short as practicable. In open water, the towlines and fastenings between barges may be lengthened so as to accommodate the wave surge. In the case of lengthy or cumbersome tows, or tows in restricted channels, the District Commander may require that tows be broken up, and may require the installation of a rudder or other approved steering device on the tow in order to avoid obstructing navigation or damaging the property of others. Pushing barges with towing vessel astern, towing barges with towing vessel alongside, or pushing and pulling barges with units of the tow made up both ahead and astern of the towing vessel are permissible provided that adequate power is employed to keep the tows under full control at all times. No tow shall be drawn by a vessel that has insufficient power or crew to permit ready maneuverability and safe handling.
- (vi) All tows navigating the Pass Manchac bridges in Louisiana are limited to no more than two barges, not to exceed a combined tow length of 400 feet (excluding the towboat). Vessel operators for tows exceeding these limits must request and receive permission from the COTP New Orleans prior to navigating the bridges. Requests should be made by telephoning the COTP at 504-365-2200 or 504-365-2545. Any decision made by the COTP is final agency action.
- (6) Projections from vessels: Vessels or tows carrying a deck load which overhangs or projects over the side, or whose rigging projects over the side, so as to endanger passing vessels, wharves, or other property, shall not enter or pass through any of the narrow parts of the waterway without prior approval of the District Commander.
- (7) Meeting and passing: Passing vessels shall give the proper signals and pass in accordance with the Inland Navigation Rules (33 CFR Subchapter E), where applicable. At certain intersections where strong currents may be encountered, sailing directions may be issued through navigation bulletins or signs posted on each side of the intersections.

Note: The Corps of Engineers also has regulations dealing with this section in 33 CFR 207.

[CGD 75-082, 42 FR 51759, Sept. 29, 1977, as amended by CGD 78-050, 45 FR 43167, June 26, 1980; USCG-2000-7223, 65 FR 40058, June 29, 2000; USCG-2008-0179, 73 FR 35016, June 19, 2008; USCG-2015-0433, 80 FR 44282, July 27, 2015; USCG-2022-0323, 88 FR 10029, Feb. 16, 2023]

§ 162.80 Mississippi River below mouth of Ohio River, including South and Southwest passes.

- (a) *Mooring on the Mississippi River between miles 311.5 AHP and 340.0 AHP.*

- (1) No vessel or craft shall moor along either bank of the Mississippi River between miles 311.5 AHP and mile 340.0 AHP except in case of an emergency, pursuant to an approved navigation permit, or as authorized by the District Commander. Vessels may be moored any place outside the navigation channel in this reach in case of an emergency and then for only the minimum time required to terminate the emergency. When so moored, all vessels shall be securely tied with bow and stern lines of sufficient strength and fastenings to withstand currents, winds, wave action, suction from passing vessels or any other forces which might cause the vessels to break their moorings. When vessels are so moored, a guard shall be on board at all times to ensure that proper signals are displayed and that the vessels are securely and adequately moored.
- (2) Vessels may be moored any time at facilities constructed in accordance with an approved navigation permit or as authorized by the District Commander. When so moored, each vessel shall have sufficient fastenings to prevent the vessels from breaking loose by wind, current, wave action, suction from passing vessels or any other forces which might cause the vessel to break its mooring. The number of vessels in one fleet and the width of the fleet of vessels tied abreast shall not extend into the fairway or be greater than allowed under the permit.
- (3) Mariners should report immediately by radio or fastest available means to the lockmaster at Old River Lock or to any government patrol or survey boat in the vicinity any emergency mooring or vessels drifting uncontrolled within the area described in paragraph (a)(1) of this section. It is the responsibility and duty of the master of a towing vessel releasing or mooring a vessel in this reach of the Mississippi River to report such action immediately.

(b) ***Mooring on Mississippi River below Baton Rouge, La., including South and Southwest Passes.***

- (1) When tied up individually or in fleets, vessels shall be moored with sufficient lines and shore fastenings to insure their remaining in place and withstanding the action of winds, currents and the suction of passing vessels.

Note: The Corps of Engineers also has regulations dealing with this section in 33 CFR part 207.

(Sec. 7, 38 Stat. 1053, as amended, (33 U.S.C. 471); Sec. 6(g)(1)(A) 80 Stat 937, (49 U.S.C. 1655(g)(1)(A); Sec. 12, 92 Stat. 1471, (46 U.S.C. 70034); 49 CFR 1.46 (c)(1) and (n)(4))

[CGD 75-082, 42 FR 51759, Sept. 29, 1977, as amended by CGD 77-028, 46 FR 49851, Oct. 8, 1981; CGD8 87-09, 53 FR 15555, May 2, 1988; USCG-2020-0304; 85 FR 58280, Sept. 18, 2020]

§ 162.85 Yazoo Diversion Canal, Vicksburg, Miss., from its mouth at Kleinston Landing to Fisher Street; navigation.

- (a) **Speed.** Excessive speeding is prohibited. A vessel shall reduce its speed sufficiently to prevent any damage when approaching another vessel in motion or tied up, a wharf or other structure, works under construction, plant engaged in river and harbor improvement, levees, floodwalls withstanding floodwaters, buildings submerged or partially submerged by high waters, or any other structure or improvement likely to be damaged by collision, suction, or wave action.

Note: The Corps of Engineers also has regulations dealing with this section in 33 CFR part 207.

§ 162.90 White River, Arkansas Post Canal, Arkansas River, and Verdigris River between Mississippi River, Ark., and Catoosa, Okla.; use, administration, and navigation.

(a) The regulations in this section shall apply to:

- (1) **Waterways.** White River between Mississippi River and Arkansas Post Canal, Ark.; Arkansas Post Canal, Ark.; Arkansas River between Arkansas Post Canal, Ark., and Verdigris River, Okla.; Verdigris River between Arkansas River and Catoosa, Okla.; and reservoirs on these waterways between Mississippi River Ark., and Catoosa, Okla.
- (2) **Bridges, wharves and other structures.** All bridges, wharves, and other structures in or over the waterways described in paragraph (a)(1) of this section.
- (3) **Vessels and rafts.** The term “vessels” as used in this section includes every description of watercraft used, or capable of being used, as a means of transportation on water, other than rafts.

(b) Waterways:

- (1) **Fairway.** A clear channel shall at all times be left open to permit free and unobstructed navigation by all types of vessels and rafts that normally use the various waterways or sections thereof. The District Commander may specify the width of the fairway required in the waterways under his charge.
- (2) **Anchoring or mooring in waterway.**
 - (i) No vessels or rafts shall anchor or moor in any of the land cuts or other narrow parts of the waterway, except in an emergency. Whenever it becomes necessary for a vessel or raft to stop in any such portions of the waterway, it shall be securely fastened to one bank and as close to the bank as possible. This shall be done only at such a place and under such conditions as will not obstruct or prevent the passage of other vessels or rafts. Stoppages shall be only for such periods as may be necessary.
 - (ii) Except temporarily, as authorized in paragraph (b)(2)(i) of this section, no vessel or raft will be allowed to use any portion of the fairway as a mooring place without written permission from the District Commander.
 - (iii) When tied up individually, all vessels shall be moored by bow and stern lines. Rafts and tows shall be secured at sufficiently close intervals to insure their not being drawn away from the bank by winds, currents, or the suction of passing vessels. Towlines shall be shortened so that the different parts of the tow will be as close together as possible. In narrow sections, no vessel or raft shall be tied abreast of another if the combined width of vessels or rafts is greater than 70 feet.
 - (iv) When a vessel is moored under an emergency condition, as provided in paragraph (b)(2)(i) of this section, at least one crew member shall remain in attendance to display proper lights and signals and tend the mooring lines. The crew member shall be provided with an adequate means of communication or signalling a warning in the event that, for any reason, the vessel or tow should go adrift. Immediately after completion of the emergency mooring, the lockmaster of the first lock downstream shall be notified of the character and cargo of the vessel and the location of such mooring.

- (v) Vessels will not be permitted to load or unload in any of the land cuts, except at a regular established landing or wharf, without written permission secured in advance from the District Commander.
- (vi) Except in an emergency, no vessel or raft shall anchor over revetted banks of the waterway, nor shall any type vessel except launches and other small craft land against banks protected by revetment except at regular commercial landings.

(3) ***Speed.***

- (i) Excessive speed in narrow sections is prohibited. Official signs indicating limiting speeds through critical sections shall be strictly obeyed.
- (ii) When approaching and passing through a bridge, all vessels and rafts, regardless of size, shall control their speed so as to insure that no damage will be done to the bridge or its fenders.
- (iii) Within the last mile of approach to unattended, normally open automatic, movable span bridges, the factor of river flow velocity, of vessel (and tow) velocity, and of vessel power and crew capability are never to be permitted to result in a condition whereby the movement of vessel (and tow) cannot be completely halted or reversed within a 3-minute period.
- (iv) A vessel shall reduce its speed sufficiently to prevent any damage when approaching another vessel in motion or tied up, a wharf or other structure, works under construction, plant engaged in river and harbor improvement, levees withstanding floodwaters, buildings submerged or partially submerged by high waters, or any other manner of structure or improvements likely to be damaged by collision, suction, or wave action.

(4) ***Assembly and handling of tows.***

- (i) All vessels drawing tows not equipped with rudders in restricted channels and land cuts shall use two towlines, or a bridle on one towline, shortened to the greatest possible extent so as to have maximum control at all times. The various parts of a tow shall be securely assembled with the individual units connected by lines as short as practicable. In open water, the towlines and fastenings between barges may be lengthened so as to accommodate the wave surge. In the case of length or cumbersome tows, or tows in restricted channels, the District Commander may require that tows be broken up, and may require the installation of a rudder or other approved steering device on the tow in order to avoid obstructing navigation or damaging the property of others. Pushing barges with towing vessel astern, towing barges with towing vessel alongside, or pushing and pulling barges with units of the tow made up both ahead and astern of the towing vessel is permissible provided that adequate power is employed to keep the tow under full control at all times.
- (ii) No tow shall be drawn by a vessel that has insufficient power or crew to permit ready maneuverability and safe handling.
- (iii) No vessel or tow shall navigate through a drawbridge until the movable span is fully opened.

(5) ***Projections from vessels.*** No vessels carrying a deck load which overhangs or projects over the side, or whose rigging projects over the side, so as to endanger passing vessels, wharves, or other property, shall enter or pass through any of the narrow parts of the waterway.

- (6) **Meeting and passing.** Vessels on meeting or overtaking shall give the proper signals and pass in accordance with the Inland Navigation Rules (33 CFR Subchapter E). Rafts shall give to vessels the side demanded by proper signal. All vessels approaching dredges or other plant engaged on improvements to a waterway shall give the signal for passing and slow down sufficiently to stop if so ordered or if no answering signal is received. On receiving the answering signal, they shall then pass at a speed sufficiently slow to insure safe navigation. Vessels approaching an intersection or bend where the view is obstructed must exercise due caution. At certain intersections where strong currents may be encountered, sailing directions may be issued from time to time through navigation bulletins or signs posted on each side of the intersections which must be observed.

Note: The Corps of Engineers also has regulations dealing with this section in 33 CFR part 207.

[CGD 75-082, 42 FR 51759, Sept. 29, 1977, as amended by USCG-2008-0179, 73 FR 35016, June 19, 2008; USCG-2015-0433, 80 FR 44282, July 27, 2015]

§ 162.100 Ohio River at Louisville, KY.

- (a) **Emergency Mooring Buoys.** The U.S. Army Corp of Engineers has established four pairs of emergency mooring bouys. Each buoy is 10 feet in diameter with retro-reflective sides. The two buoys which comprise each pair are 585 feet apart and are located approximately at:

- (1) Indiana Bank—Mile 582.3 (near 18 Mile Island);
- (2) Six Mile Island—Mile 597.5;
- (3) Six Mile Island—Mile 598.2; and
- (4) Kentucky Bank—Mile 599.8 (Cox's Park).

Note: All buoys, except those at Six Mile Island—Mile 598.2, are removed between May 1 and September 30. Due to the close proximity of the municipal water intakes, mooring of tank vessels laden with petroleum products or hazardous materials is not authorized on the Kentucky Bank, Mile 599.8 (Cox's Park).

- (b) **The regulations.** A vessel must not use the emergency mooring buoys that have been established by the U.S. Army Corps of Engineers, unless specifically authorized. The Captain of the Port, upon request, may authorize the use of the emergency mooring buoys by downbound towing vessels that are awaiting Vessel Traffic Center approval to proceed.

[CGD 90-020, 59 FR 36333, July 15, 1994]

§ 162.105 Missouri River; administration and navigation.

- (a) **Supervision.** The District Commander, USCG Heartland District, has certain administrative supervision overreaches of the river within the limits of his district and is charged with the enforcement under his direction of emergency regulations to govern navigation on the river.

- (b) **Navigation.** During critical flood stages on any particular limited reach of the Missouri River when lives, floating plant, or major shore installations and levees are endangered, the District Commander in charge of the locality shall have the authority to declare the reach of the river closed to navigation or to prescribe temporary speed regulations whenever it appears to him that such action is necessary to prevent immediate human suffering or to mitigate major property damage or destruction from wave action. The period of closure and all speed regulations prescribed by the District Commander shall be for the duration of the emergency as determined by the District Commander and shall be terminated at the earliest practicable time that improved river conditions permit.

[CGD 75-082, 42 FR 51759, Sept. 29, 1977, as amended by USCG-1998-3799, 63 FR 35532, June 30, 1998]

§ 162.110 Duluth-Superior Harbor, Minnesota and Wisconsin.

- (a) No vessel greater than 100 feet in length may exceed 8 miles per hour in Duluth-Superior Harbor.
- (b) In the Duluth Ship Canal:
- (1) No vessel may meet or overtake another vessel if each vessel is greater than 150 feet in length (including tug and tow combinations).
- (2) An inbound vessel has the right of way over an outbound vessel.

[CGD 79-151, 46 FR 7960, Jan. 26, 1981]

§ 162.115 Keweenaw Waterway, Mich.

No vessel greater than 40 feet in length may exceed 8 miles per hour between Lily Pond and Pilgrim Point.

[CGD 79-151, 46 FR 7960, Jan. 26, 1981, as amended by CGD 09-00-010, 65 FR 53595, Sept. 5, 2000]

§ 162.117 St. Marys River, Sault Ste. Marie, Michigan.

- (a) **The area.** The waters of the St. Marys River and lower Whitefish Bay from 45°57' N. (De Tour Reef Light) to the south, to 46°38.7' N. (Ile Parisienne Light) to the north, except the waters of the St. Marys Falls Canal, and to the east along a line from La Pointe to Sims Point, within Potagannissing Bay and Worsley Bay.
- (b) **Definitions.** As used in this section:
- Two-way route** means a directional route within defined limits inside which two-way traffic is established, and which is intended to improve safety in waters where navigation is difficult.
- Two-way traffic** means that traffic flow is permitted in opposing directions, but a vessel may not meet, cross, nor overtake any other vessel in such a manner that it would be abreast of more than one other vessel within the defined limits of a waterway.
- (c) **Anchoring Rules.**
- (1) A vessel must not anchor:
- (i) within the waters between Brush Point and the waterworks intake crib off Big Point southward of the Point Aux Pins range; or
- (ii) within 0.2 nautical miles of the intake crib off Big Point.

- (2) In an emergency, vessels may anchor in a dredged channel. Vessels shall anchor as near to the edge of the channel as possible and shall get underway as soon as the emergency ceases, unless otherwise directed. Vessel Traffic Services St. Marys River must be advised of any emergency anchoring as soon as is practicable.
- (3) Vessels collected in any part of the VTS Area by reason of temporary closure of a channel or an impediment to navigation shall get underway and depart in the order in which they arrived, unless otherwise directed by Vessel Traffic Service St. Marys River. Vessel Traffic Service St. Marys River may advance any vessel in the order of departure to expedite the movement of mails, passengers, cargo of a perishable nature, to facilitate passage of vessels through any channel by reason of special circumstance, or to facilitate passage through the St. Marys Falls Canal.

(d) **Traffic Rules.**

- (1) A vessel must proceed only in the established direction of traffic flow in the following waters:
 - (i) West Neebish Channel from Buoy "53" to Buoy "1"—downbound traffic only;
 - (ii) Pipe Island Course from Sweets Point to Watson Reefs Light—downbound traffic only.
 - (iii) Middle Neebish Channel from Buoy "2" to Buoy "76"—upbound traffic only; and
 - (iv) Pipe Island Passage to the east of Pipe Island Shoal and north of Pipe Island Twins from Watson Reefs Light to Sweets Point—upbound traffic only.
- (2) A vessel 350 feet or more in length must not overtake or approach within .2 nautical miles of another vessel proceeding in the same direction in the following waterways:
 - (i) West Neebish Channel between Nine Mile Point and Munuscong Lake Junction Lighted Bell Buoy;
 - (ii) Middle Neebish Channel between Munuscong Lake Junction Lighted Bell Buoy and Nine Mile Point; and
 - (iii) Little Rapids Cut from Six Mile Point to Buoy "102".
- (3) When two-way traffic is authorized in Middle Neebish Channel, a vessel 350 feet or more in length must not meet, cross, or overtake another vessel at:
 - (i) Johnson Point from Buoy "18" to Buoy "22";
 - (ii) Mirre Point from Buoy "26" to Buoy "28"; or
 - (iii) Stribling Point from Buoy "39" to Buoy "43".
- (4) Paragraph (d)(2) of this section does not apply to a vessel navigating through an ice field.

(e) **Winter Navigation.** During the winter navigation season, the following waterways are normally closed:

- (1) West Neebish Channel, from Buoy "53" to Buoy "1";
- (2) Pipe Island Passage to the east of Pipe Island Shoal; and
- (3) North of Pipe Island Twins, from Watson Reef Light to Sweets Point.

(f) **Alternate Winter Navigation Routes.**

- (1) When West Neebish Channel is closed, Middle Neebish Channel (from Buoy “2” to Buoy “76”) will be open either as a two-way route or an alternating one way traffic lane.
 - (i) When Middle Neebish Channel is a two-way route:
 - (A) An upbound vessel must use the easterly 197 feet of the channel. However, a vessel of draft 20 feet or more must not proceed prior to Vessel Traffic Center approval; and
 - (B) A downbound vessel must use the westerly 295 feet of the channel.
 - (ii) When Middle Neebish Channel is an alternating one-way traffic lane. A vessel must use the westerly 295 feet of the channel in the established direction of traffic flow.
- (2) When Pipe Island Passage is closed, Pipe Island Course is a two-way route.

Note: The Vessel Traffic Service closes or opens these channels as ice conditions require after giving due consideration to the protection of the marine environment, waterway improvements, aids to navigation, the need for cross channel traffic (e.g., ferries), the availability of icebreakers, and the safety of the island residents who, in the course of their daily business, must use naturally formed ice bridges for transportation to and from the mainland. Under normal seasonal conditions, only one closing each winter and one opening each spring are anticipated. Prior to closing or opening these channels, interested parties including both shipping entities and island residents, will be given at least 72 hours notice by the Coast Guard.

(g) **Speed Rules.**

- (1) The following speed limits indicate speed over the ground. Vessels must adhere to the following speed limits:

TABLE 162.117(g)—ST. MARYS RIVER SPEED RULES

Maximum speed limit between	Mph	Kts
De Tour Reef Light and Sweets Point Light	14	12.2
Round Island Light and Point Aux Frenes Light “21”	14	12.2
Munuscong Lake Lighted Buoy “8” and Everens Point	12	10.4
Everens Point and Reed Point	9	7.8
Reed Point and Lake Nicolet Lighted Buoy “62”	10	8.7
Lake Nicolet Lighted Buoy “62” and Lake Nicolet Light “80”	12	10.4
Lake Nicolet Light “80” and Winter Point (West Neebish Channel)	10	8.7
Lake Nicolet Light “80” and Six Mile Point Range Rear Light	10	8.7

Note: A vessel must not navigate any dredged channel at a speed of less than 5 statute miles per hour (4.3 knots).

Maximum speed limit between	Mph	Kts
Six Mile Point Range Rear Light and lower limit of the St. Marys Falls Canal		
Upbound	8	7.0
Downbound	10	8.7
Upper limit of the St. Marys Falls Canal and Point Aux Pins Main Light	12	10.4

Note: A vessel must not navigate any dredged channel at a speed of less than 5 statute miles per hour (4.3 knots).

- (2) Temporary speed limit regulations may be established by Commanding Officer Vessel Traffic Service St. Marys River. Notice of the temporary speed limits and their effective dates and termination are published in the FEDERAL REGISTER and Local Notice to Mariners. These temporary speed limits, if imposed, will normally be placed in effect and terminated during the winter navigation season.

(h) **Towing Requirement.** A towing vessel must:

- (1) Maintain positive control of its tow south of Gros Cap Reef Light;
- (2) Not impede the passage of any other vessel;
- (3) Not tow a vessel of 200 feet or less in length with a tow line longer than 250 feet; and
- (4) Not tow a vessel of 200 feet or more in length with a tow line longer than the length of the towed vessel plus 50 feet.

[CGD 90-020, 59 FR 36333, July 15, 1994, as amended by CGD 95-033, 60 FR 28333, May 31, 1995; USCG-1998-3799, 63 FR 35532, June 30, 1998; USCG-2003-15404, 68 FR 37741, June 25, 2003]

§ 162.120 Harbors on Lake Michigan.

- (a) No vessel greater than 40 feet in length may exceed 8 miles per hour in the harbors of Michigan City, Indiana; St. Joseph, South Haven, Saugatuck, Holland (Lake Macatawa), Grand Haven, Muskegon, White Lake, Pentwater, Ludington, Manistee, Portage Lake (Manistee County), Frankfort, Charlevoix, and Petoskey, Michigan.
- (b) No vessel greater than 40 feet in length may exceed 4 miles per hour in the harbors of Menominee, Michigan and Wisconsin; Algoma, Kewaunee, Two Rivers, Manitowac, Sheboygan, Port Washington, Milwaukee, Racine, Kenosha and Green Bay, Wisconsin; and Waukegan, Illinois.

[CGD 79-151, 46 FR 7960, Jan. 26, 1981, as amended by USCG-2012-0306, 77 FR 37315, June 21, 2012]

§ 162.125 Sturgeon Bay and the Sturgeon Bay Ship Canal, Wisc.

- (a) In the Sturgeon Bay Ship Canal:
 - (1) No vessel may exceed 5 miles per hour.
 - (2) No vessel greater than 150 feet in length (including tug and tow combinations) may come about.
 - (3) No vessel 65 feet or greater in length (including tug and tow combinations) may either:

- (i) Enter or pass through the canal two or more abreast; or
 - (ii) Overtake another vessel.
- (4) No vessel may anchor or moor unless given permission to do so by the Captain of the Port.
- (5) Each vessel must keep to the center, except when meeting or overtaking another vessel.
- (b) In Sturgeon Bay and the Sturgeon Bay Ship Canal:
 - (1) Each laden vessel under tow must be towed with at least two towlines. Each towline must be shortened to the extent necessary to provide maximum control of the tow.
 - (2) Each unladen vessel may be towed with one towline.
 - (3) No towline may exceed 100 feet in length.
 - (4) No vessel may tow another vessel alongside.
 - (5) No vessel may tow a raft greater than 50 feet in width.

Note: The Corps of Engineers also has regulations dealing with these areas in 33 CFR part 207.

[CGD 79-151, 46 FR 7960, Jan. 26, 1981]

§ 162.130 Connecting waters from Lake Huron to Lake Erie; general rules.

- (a) **Purpose.** The regulations in §§ 162.130 through 162.140 prescribe rules for vessel operation in U.S. waters connecting Lake Huron to Lake Erie (including the River Rouge) to prevent collisions and groundings, to protect waterway improvements, and to protect these waters from environmental harm resulting from collisions and groundings.

Note: The Canadian Government has issued similar regulations which apply in the Canadian portion of the waterway. Provisions which apply only in Canadian waters are noted throughout the text.

- (b) **Applicability.**
 - (1) Unless otherwise specified, the rules in §§ 162.130 through 162.140 apply to all U.S. vessels and all other vessels in U.S. waters.
 - (2) The speed rules in § 162.138 apply to vessels 20 meters or more in length.
 - (3) The communication rules in § 162.132, the traffic rules in § 162.134, except for § 162.134(c)(2), and the anchorage rules in § 162.136 apply to the following vessels:
 - (i) Vessels of 20 meters or more in length;
 - (ii) Commercial vessels more than 8 meters in length engaged in towing another vessel astern, alongside, or by pushing ahead; and
 - (iii) Each dredge and floating plant.
 - (4) The traffic rules contained in § 162.134(c)(2) apply to the following vessels:

- (i) Sailing vessels of 20 meters or more in length;
- (ii) Power driven vessels of 55 meters or more in length;
- (iii) Vessels engaged in towing another vessel astern, alongside or by pushing ahead; and
- (iv) Each dredge and floating plant.

(c) **Definitions.** As used in §§ 162.130 through 162.140:

Captain of the Port means the United States Coast Guard Captain of the Port of Detroit, Michigan.

Detroit River means the connecting waters from Windmill Point Light to the lakeward limits of the improved navigation channels at the head of Lake Erie.

District Commander means Commander, USCG Great Lakes District, Cleveland, Ohio.

Master means the master or operator, the person designated by the master or operator to navigate the vessel, or, on a vessel not requiring persons holding licenses or merchant mariner credential officer endorsements, the person in command of the vessel.

River Rouge means the waters of the Short Cut Canal and the River Rouge from Detroit Edison Cell Light 1 to the head of navigation.

St. Clair River means the connecting waters from the lakeward limit of the improved navigation channel at the lower end of Lake Huron to St. Clair Flats Canal Light 2.

SARNIA TRAFFIC means the Canadian Coast Guard traffic center at Sarnia Ontario.

- (d) **Laws and regulations not affected.** The regulations in §§ 162.130 through 162.140 do not relieve the owners or operators of vessels from complying with any other laws or regulations relating to navigation on the Great Lakes and their connecting or tributary waters.
- (e) **Delegations.** The District Commander, in coordination with appropriate Canadian officials, may make local arrangements that do not conflict with these regulations in the interest of safety of operations, to facilitate traffic movement and anchorage, to avoid disputes as to jurisdiction and to take necessary action to render assistance in emergencies. This authority may be redelegated.

[CGD 78-151, 49 FR 18301, Apr. 30, 1984; 49 FR 26722, June 29, 1984, as amended by CGD 85-060, 51 FR 17016, May 8, 1986; CGD 93-024, 58 FR 59365, Nov. 9, 1993; USCG-2006-24371, 74 FR 11213, Mar. 16, 2009]

§ 162.132 Connecting waters from Lake Huron to Lake Erie; communications rules.

- (a) **Radio listening watch.** The master of each vessel required to comply with this section shall continuously monitor:
 - (1) Channel 11 (156.55 mhz) between Lake Huron Cut Lighted Buoy 11 and Lake St. Clair Light; and
 - (2) Channel 12 (156.60 mhz) between Lake St. Clair Light and Detroit River Light.
- (b) **Radiotelephone equipment.** Reports required by this section shall be made by the master using a radiotelephone capable of operation on a vessel's navigation bridge, or in the case of a dredge, from its main control station.
- (c) **English language.** Reports required by this section shall be made in the English language.
- (d) **Traffic reports.**

- (1) Reports required by this section shall be made to SARNIA TRAFFIC on the frequency designated for the radio listening watch in paragraph (a) of this section.
- (2) Reports shall include the name of the vessel, location, intended course of action, and ETA at next reporting point.
- (e) **Permanent reporting points.** The master of each vessel to which this section applies shall report as required by paragraph (d) of this section at the location indicated in Table I.

TABLE I

Downbound vessels	Reporting points	Upbound vessels
Report	30 Minutes North of Lake Huron Cut	
	Lighted Horn Buoy "11"	
Report	Lake Huron Cut Light "7"	
	Lake Huron Cut Lighted Buoy "1"	Report.
Report	St. Clair/Black River Junction Light	Report.
	Stag Island Upper Light	Report.
Report	Marine City Salt Dock Light	Report.
Report	Grande Pointe Light "23"	
	St. Clair Flats Canal Light "2"	Report.
Report	Lake St. Clair Light	Report.
Report	Belle Isle Light	
Report	Grassy Island Light	Report.
Report	Detroit River Light	Report.

- (f) **Additional traffic reports.**
 - (1) A report shall be made upon leaving any dock, mooring, or anchorage, in the Detroit River, Lake St. Clair, and the St. Clair River except for—
 - (i) Ferries on regular runs; and
 - (ii) Vessels in the River Rouge.
 - (2) A report shall be made before maneuvering to come about.
 - (3) A report shall be made—
 - (i) 20 minutes before entering or departing the River Rouge; and
 - (ii) Immediately before entering or departing the River Rouge.
- (g) **Report of impairment or other hazard.** The master of a vessel shall report to SARNIA TRAFFIC as soon as possible:

- (1) Any condition on the vessel that may impair its navigation, including but not limited to: fire, defective steering equipment, or defective propulsion machinery.
- (2) Any tow that the towing vessel is unable to control, or can control only with difficulty.
- (h) **Exemptions.** Compliance with this section is not required when a vessel's radiotelephone equipment has failed.

[CGD 78-151, 49 FR 18301, Apr. 30, 1984; 49 FR 26722, June 29, 1984, as amended by CGD 85-060, 51 FR 17016, May 8, 1986; CGD 85-060, 51 FR 37274, Oct. 21, 1986]

§ 162.134 Connecting waters from Lake Huron to Lake Erie; traffic rules.

- (a) **Detroit River.** The following traffic rules apply in the Detroit River:
 - (1) The West Outer Channel is restricted to downbound vessels.
 - (2) The Livingston Channel, west of Bois Blanc Island, is restricted to downbound vessels.

Note: The Amherstburg Channel, in Canadian waters east of Bois Blanc Island, is normally restricted to upbound vessels. No vessel may proceed downbound in the Amherstburg Channel without authorization from the Regional Director General.

 - (3) Between Fighting Island Channel South Light and Bar Point Pier Light 29D, no vessels shall meet or overtake in such a manner that more than two vessels would be abreast at any time.
 - (4) Between the west end of Belle Isle and Peche Island Light, vessels may only overtake vessels engaged in towing.
- (b) **River Rouge.** In the River Rouge, no vessel shall overtake another vessel.
- (c) **St. Clair River.** The following traffic rules apply in the St. Clair River:
 - (1) Between St. Clair Flats Canal Light 2 and Russell Island Light 33, vessels may only overtake vessels engaged in towing.
 - (2) Between Lake Huron Cut Lighted Buoy 1 and Port Huron Traffic Lighted Buoy there is a zone of alternating one way traffic. Masters shall coordinate their movements in accordance with the following rules;
 - (i) Vessels shall not overtake.
 - (ii) Vessels shall not come about.
 - (iii) Vessels shall not meet.
 - (iv) Downbound vessels which have passed Lake Huron Cut Lighted Buoy 7 have the right of way over upbound vessels which have not reached the Port Huron Traffic Lighted Buoy. Upbound vessels awaiting transit of downbound vessels will maintain position south of the Port Huron Traffic Lighted Buoy.
 - (v) Vessels transiting the zone shall coordinate passage by using communication procedures in § 162.132.

(vi) Transiting vessels shall have the right of way over moored vessels getting underway within the zone.

- (d) In the waters described in § 162.130(a), the District Commander or Captain of the Port may establish temporary traffic rules for reasons which include but are not limited to: channel obstructions, winter navigation, unusual weather conditions, or unusual water levels.
- (e) The requirements of this section do not apply to public vessels of the U.S. or Canada engaged in icebreaking or servicing aids to navigation or to vessels engaged in river and harbor improvement work.
- (f) The prohibitions in this section on overtaking in certain areas do not apply to vessels operating in the nondisplacement mode. In this section, “nondisplacement mode” means a mode of operation in which the vessel is supported by hydrodynamic forces, rather than displacement of its weight in the water, to an extent such that the wake which would otherwise be generated by the vessel is significantly reduced.

[CGD 78-151, 49 FR 18302, Apr. 30, 1984; 49 FR 26722, June 29, 1984, as amended by CGD 09-95-002, 60 FR 35701, July 11, 1995]

§ 162.136 Connecting waters from Lake Huron to Lake Erie; anchorage grounds.

- (a) In the Detroit River, vessels shall be anchored so as not to swing into the channel or across steering courses.

Note: There is an authorized anchorage in Canadian waters just above Fighting Island and an authorized anchorage in U.S. waters south of Belle Isle (33 CFR 110.206).

- (b) In the St. Clair River, vessels shall be anchored so as not to swing into the channel or across steering courses.

[CGD 78-151, 49 FR 18302, Apr. 30, 1984, as amended by CGD 85-060, 51 FR 17016, May 8, 1986]

§ 162.138 Connecting waters from Lake Huron to Lake Erie; speed rules.

- (a) *Maximum speed limit for vessels in normal displacement mode.*

- (1) Except when required for the safety of the vessel or any other vessel, vessels of 20 meters or more in length operating in normal displacement mode shall proceed at a speed not greater than—
 - (i) 12 statute miles per hour (10.4 knots) between Fort Gratiot Light and St. Clair Flats Canal Light 2;
 - (ii) 12 statute miles per hour (10.4 knots) between Peche Island Light and D33 stationary light in the Detroit River entrance; and
 - (iii) 4 statute miles per hour (3.5 knots) in the River Rouge.
- (2) The maximum speed limit is 5.8 statute miles per hour (5 knots) in the navigable channel south of Peche Island (under Canadian jurisdiction).

- (b) *Maximum speed limit for vessels operating in nondisplacement mode.*

- (1) Except when required for the safety of the vessel or any other vessel, vessels 20 meters or more in length but under 100 gross tons operating in the nondisplacement mode and meeting the requirements set out in paragraph (c) of this section, may operate at a speed not exceeding 40 miles per hour (34.8 knots)—
 - (i) During daylight hours (sunrise to sunset);
 - (ii) When conditions otherwise safely allow; and
 - (iii) When approval has been granted by the Coast Guard Captain of the Port, Detroit or Commander of the USCG Great Lakes District prior to each transit of the area.
- (2) In this section, “nondisplacement mode” means a mode of operation in which the vessel is supported by hydrodynamic forces, rather than displacement of its weight in the water, to an extent such that the wake which would otherwise be generated by the vessel is significantly reduced.
- (c) **Unsafe vessels.** The Captain of the Port or the District Commander may deny approval for operations under paragraph (b) of this section if it appears that the design and operating characteristics of the vessels in question are not safe for the designated waterways, or if it appears that operations under this section have become unsafe for any reason.
- (d) **Temporary speed limits.** The District Commander may temporarily establish speed limits or temporarily amend existing speed limit regulations on the waters described in § 162.130(a).

[CGD 09-95-002, 60 FR 35702, July 11, 1995, as amended by USCG-2011-1086, 77 FR 62437, Oct. 15, 2012]

§ 162.140 Connecting waters from Lake Huron to Lake Erie; miscellaneous rules.

- (a) **Rules for towing vessels.**
 - (1) A towing vessel may drop or anchor its tows only in accordance with the provisions of § 162.136.
 - (2) A towing vessel engaged in arranging its tow shall not obstruct the navigation of other vessels.
- (b) **Pilots.** In the St. Clair River between Lake Huron Cut Lighted Buoy 1 and Port Huron Traffic Lighted Buoy, vessels shall not take on, discharge, or exchange pilots unless weather conditions would make the maneuver unsafe in the customary pilot area.

[CGD 78-151, 49 FR 18302, Apr. 30, 1984]

§ 162.145 Monroe Harbor, Mich.

- (a) In the lake channel, no vessel greater than 40 feet in length may exceed 10 miles per hour.
- (b) In the river channel:
 - (1) No vessel greater than 40 feet in length may exceed 6 miles per hour.
 - (2) No vessel may use a towline exceeding 200 feet in length.

[CGD 79-151, 46 FR 7960, Jan. 26, 1981]

§ 162.150 Maumee Bay and River, Ohio.

- (a) In Maumee Bay (lakeward of Maumee River Lighted Buoy 49(L/L No. 770)), no vessel greater than 100 feet in length may exceed 12 miles per hour.
- (b) In Maumee River (inward of Maumee River Lighted Buoy 49(L/L No. 770)):
 - (1) No vessel greater than 40 feet in length may exceed 6 miles per hour.
 - (2) No vessel greater than 100 feet in length (including tug and tow combinations) may overtake another vessel.

[CGD 79-151, 46 FR 7960, Jan. 26, 1981]

§ 162.155 Sandusky and Huron Harbors, Ohio.

- (a) In Sandusky Harbor, no vessel greater than 40 feet in length may exceed 10 miles per hour.
- (b) In Huron Harbor, no vessel greater than 40 feet in length may exceed 6 miles per hour, except in the outer harbor where no vessel greater than 40 feet in length may exceed 10 miles per hour.

Note: The Corps of Engineers also has regulations dealing with these areas in 33 CFR part 207.

[CGD 79-151, 46 FR 7960, Jan. 26, 1981]

§ 162.160 Vermilion, Lorain, Cleveland, Fairport, Ashtabula, and Conneaut Harbors, Ohio.

- (a) In Vermilion Harbor, no vessel may exceed 6 miles per hour.
- (b) In Lorain, Cleveland, Fairport, Ashtabula, and Conneaut Harbors, no vessel may exceed 6 miles per hour, except in the outer harbors, where no vessel may exceed 10 miles per hour.

Note: The Corps of Engineers also has regulations dealing with these areas in 33 CFR part 207.

[CGD 79-151, 46 FR 7960, Jan. 26, 1981]

§ 162.165 Buffalo and Rochester Harbors, New York.

In Buffalo and Rochester Harbors, no vessel may exceed 6 miles per hour, except in the outer harbors where no vessel may exceed 10 miles per hour.

Note: The Corps of Engineers also has regulations dealing with these areas in 33 CFR part 207.

[CGD 79-151, 46 FR 7960, Jan. 26, 1981]

§ 162.175 Black Rock Canal and Lock at Buffalo, New York.

In the Black Rock Canal and Lock, no vessel may exceed 6 miles per hour.

Note: The Corps of Engineers also has regulations dealing with these areas in 33 CFR part 207.

[CGD 79-151, 46 FR 7960, Jan. 26, 1981]

§ 162.195 Santa Monica Bay, Calif.; restricted area.

- (a) **The area.** The waters of the Pacific Ocean, Santa Monica Bay, in an area extending seaward from the shoreline a distance of about 5 nautical miles (normal to the shoreline) and basically outlined as follows:

Station	Latitude North	Longitude West
A	33°54'59"	118°25'41"
B	33°54'59"	118°28'00"
C	33°53'59.5"	118°31'37"
D	33°56'19.5"	118°34'05"
E	33°56'25"	118°26'29"

- (b) **The regulations.**

- (1) Vessels shall not anchor within the area at any time without permission.
- (2) Dredging, dragging, seining, or other fishing operations which might foul underwater installations within the area are prohibited.
- (3) All vessels entering the area, other than vessels operated by or for the United States, the State of California, the county of Los Angeles, or the city of Los Angeles, shall proceed across the area by the most direct route and without unnecessary delay. The area will be open and unrestricted to small recreational craft for recreational activities at all times.
- (4) The placing of bouys, markers, or other devices requiring anchors will not be permitted.
- (5) The city of Los Angeles will maintain a patrol of the area as needed.

§ 162.200 Marina del Rey, Calif.; restricted area.

- (a) **The area.** That portion of the Pacific Ocean lying shoreward of the offshore breakwater and the most seaward 1,000 feet of the entrance channel between the north and south jetties, and basically outlined as follows:

Station	Latitude North	Longitude West
A	33°57'46.0"	118°27'39.5"
B	33°57'52.3"	118°27'43.6"
C	33°57'48.6"	118°27'48.8"

Station	Latitude North	Longitude West
D	33°57'29.8"	118°27'34.7"
E	33°57'30.9"	118°27'29.1"
F	33°57'37.4"	118°27'33.8"
G	33°57'42.4"	118°27'23.0"
H	33°57'50.6"	118°27'28.3"

(b) *The regulations.*

- (1) Vessels shall not anchor within the area at any time without permission except in an emergency.
- (2) Dredging, dragging, seining, or other fishing operations which might foul underwater installations within the area are prohibited.

[CGD 75-082, 42 FR 51759, Sept. 29, 1977, as amended by USCG-2008-0179, 73 FR 35016, June 19, 2008]

Note: The Corps of Engineers also has regulations dealing with this section in 33 CFR part 207.

§ 162.205 Suisun Bay, San Joaquin River, Sacramento River, and connecting waters, CA.

(a) *San Joaquin River Deep Water Channel between Suisun Bay and the easterly end of the channel at Stockton; use, administration and navigation –*

- (1) **Maximum speed.** The maximum speed for all ocean-going craft shall not exceed 10 miles per hour above the lower end of New York Slough, seven miles per hour above Criminal Point, or five miles per hour while passing any wharf, dock, or moored craft. As used in this paragraph, the speed of a vessel when navigating with the current shall be its rate of movement in excess of the velocity of the current.
- (2) **Passing.** All craft passing other boats, barges, scows, etc., in motion, moored or anchored, shall slow down and take every necessary precaution to avoid damage.
- (3) **Right of way.**
 - (i) United States dredges, tugs, launches, derrick boats, and similar plant of contractors executing river and harbor improvement work for the United States, and displaying the signals prescribed by the regulations contained in part 83 of this chapter shall have the right of way and other craft shall exercise special caution to avoid interference with the work on which the plant is engaged. Dredges, whether Federal or contractors' plant, working the channel must however, take special care to give ocean-going vessels sufficient room for passing, and must lift both spuds and the ladder, and pull clear, if an adequate width of clear channelway cannot otherwise be provided. Ocean-going vessels may show at the masthead a black ball not more than 20 inches in diameter as a signal to the dredge, and may also blow five long blasts of the whistle when within reasonable hearing distance of the dredge, such signal to be followed at the proper time by the passing signal described in the local pilot rules. The dredge shall promptly acknowledge both signals in the usual manner.

- (ii) Light-draft vessels when meeting or being overtaken by ocean-going vessels, shall give the right of way to such vessels by making use of the shallower portions of the waterway.
- (iii) Rafts and tows must promptly give the channel side demanded upon proper signal by a vessel, and must be handled in such a manner as not to obstruct or interfere with the free use of the waterway by other craft.

(4) **Collisions.**

- (i) Ocean-going vessels in collision in the channel or turning basin must, if still afloat and in a condition making anchorage necessary, be immediately removed to an approved anchorage ground, or if in such condition that beaching is necessary, they shall be temporarily beached on the northwest side of Mandeville Island or in the Old River.
- (ii) Light-draft vessels suffering collision shall be disposed of as directed by the District Commander or his authorized representative.

(5) **Wrecks.** In no case following accidents of fire or collision will a vessel be allowed to remain either anchored or grounded in the channel, or beached at any place where it endangers other vessels, while settlement is pending with the underwriters.

(6) **Other laws and regulations.** In all other respects, the existing Federal laws and rules and regulations affecting navigable waters of the United States will govern in this channel.

(b) **Sacramento Deep Water Ship Channel between Suisun Bay and easterly end of Turning Basin at West Sacramento; use, administration, and navigation –**

(1) **Maximum speed for all ocean going craft –**

- (i) **Between Tolands Landing (Mile 6.2) and Rio Vista Bridge.** When going against a current of two knots or more, the maximum speed over the bottom shall not exceed 8 knots. When going with the current, in slack water, or against a current of two knots or less, the maximum speed through the water shall not exceed 10 knots.
- (ii) **Between Rio Vista Bridge and Port of Sacramento.** When going against a current of two knots or more, the maximum speed over the bottom shall not exceed 5 knots. When going with the current, in slack water, or against a current of two knots or less, the maximum speed through the water shall not exceed 7 knots.
- (iii) **Speed past docks or moored craft.** Within 550 feet of the centerline of the channel the speed shall be the minimum required to maintain steerageway; wind, tide, current, etc., being taken into consideration.
- (iv) **Passing.** All craft passing other boats, barges, scows, etc., underway, moored or anchored, shall take every necessary precaution to avoid damage.
- (v) **Speed, high-water precautions.** When passing another vessel (underway, anchored, or tied up); a wharf or other structure; work under construction; plant engaged in river and harbor improvement; levees withstanding flood waters; buildings partially or wholly submerged by high water; or any other structure liable to damage by collision, suction or wave action; vessels shall give as much leeway as circumstances permit and reduce their speed sufficiently to preclude causing damage to the vessel or structure being passed. As deemed necessary for public safety during high river stages, floods, or other emergencies, the District Commander may prescribe, by navigation bulletins or other means, the limiting speed in knots or temporarily

close the waterway or any reach of it to traffic. Since this subparagraph pertains directly to the manner in which vessels are operated, masters of vessels shall be held responsible for strict observance and full compliance herewith.

(2) *Right of way.*

- (i) Dredges, tugs, launches, derrick boats and other similar equipment, executing river and harbor improvement work for the United States, and displaying the signals prescribed by the regulations contained in part 83 of this chapter, shall have the right-of-way and other craft shall exercise special caution to avoid interference with the work on which the plant is engaged. Dredges, whether Federal or contractor's plant, working the channel must however, take special care to give ocean-going vessels sufficient room for passing, and must lift both spuds and the ladder, and pull clear, if an adequate width of clear channelway cannot otherwise be provided.
- (ii) Vessels intending to pass dredges or other types of floating plant working in navigable channels, when within a reasonable distance therefrom and not in any case over a mile, shall indicate such intention by one long blast of the whistle, and shall be directed to the proper side for passage by the sounding, by the dredge or other floating plant, of the signal prescribed in the inland pilot rules for vessels underway and approaching each other from opposite directions, which shall be answered in the usual manner by the approaching vessel. If the channel is not clear, the floating plant shall sound the alarm or danger signal and the approaching vessel shall slow down or stop and await further signal from the plant.
- (iii) When the pipeline from a dredge crosses the channel in such a way that an approaching vessel cannot pass safely around the pipeline or dredge, there shall be sounded immediately from the dredge the alarm or danger signal and the approaching vessel shall slow down or stop and await further signal from the dredge. The pipeline shall then be opened and the channel cleared as soon as practicable; when the channel is clear for passage the dredge shall so indicate by sounding the usual passing signal as prescribed in paragraph (c)(2)(ii) of this section. The approaching vessel shall answer with a corresponding signal and pass promptly.
- (iv) When any pipeline or swinging dredge shall have given an approaching vessel or tow the signal that the channel is clear, the dredge shall straighten out within the cut for the passage of the vessel or tow.
- (v) Shallow draft vessels when meeting or being overtaken by ocean-going vessels, shall give the right-of-way to such vessels by making use of the shallower portions of the waterway, wherever possible.
- (vi) Tows should promptly give the channel side requested by proper signal from a vessel, and should be handled in such a manner as not to obstruct or interfere with the free use of the waterway by other craft.

(3) *Obstruction of traffic.*

- (i) Except as provided in paragraph (c)(2) of this section no person shall willfully or carelessly obstruct the free navigation of the waterway, or delay any vessel having the right to use the waterway.
- (ii) No vessel shall anchor within the channel except in distress or under stress of weather. Any vessel so anchored shall be moved as quickly as possible to such anchorage as will leave the channel clear for the passage of vessels.

- (iii) Motorboats, sailboats, rowboats, and other small craft shall not anchor or drift in the regular ship channel except under stress of weather or in case of breakdown. Such craft shall be so operated that they will not interfere with or endanger the movement of commercial or public vessels.
- (4) **Collisions.**
 - (i) Ocean-going vessels in collision in the channel or turning basin, must if still afloat and in a condition making anchorage necessary, be immediately removed to an approved anchorage ground, or if in such condition that beaching is necessary, they shall be temporarily beached on the southwest side of Ryer Island from Mile 15.0 to Mile 16.3 or in the Harbor and Turning Basin at West Sacramento.
 - (ii) Light-draft vessels suffering collision shall be disposed of as directed by the District Commander or his authorized representative.
- (5) **Marine accidents.** Masters, mates, pilots, owners, or other persons using the waterway to which this paragraph applies shall notify the District Commander and in the case of undocumented vessels, the State Division of Small Craft Harbors also, by the most expeditious means available of all marine accidents, such as fire, collision, sinking or stranding, where there is possible obstruction of the channel or interference with navigation or where damage to Government property is involved, furnishing a clear statement as to the name, address, and ownership of the vessel or vessels involved, the time and place, and the action taken. In all cases, the owner of the sunken vessel shall take immediate steps to mark the wreck properly.
- (6) **Other laws and regulations.** In all other respects, existing Federal laws and rules and regulations affecting navigable waters of the United States will govern in this channel.

Note: The Corps of Engineers also has regulations dealing with this section in 33 CFR part 207.

[CGD 75-082, 42 FR 51759, Sept. 29, 1977, as amended by CGD12 84-07, 51 FR 12318, Apr. 10, 1986; CGD11-94-007, 60 FR 16796, Apr. 3, 1995; USCG-1998-3799, 63 FR 35532, June 30, 1998; 78 FR 4788, Jan. 23, 2013; USCG-2016-0498, 82 FR 35088, July 28, 2017]

§ 162.210 Lake Tahoe, Calif.; restricted areas along south shore.

(a) *The areas –*

- (1) **Baldwin Beach, under the control of the Forest Service, Department of Agriculture.** The waters of Lake Tahoe shoreward of a line described as follows: Beginning at the intersection of the high waterline with the west boundary line of Lot 2, Section 26, Township 13 North (Mount Diablo Base Line), Range 17 East (Mount Diablo Meridian); thence north 300 feet; thence southeasterly about 2,850 feet to the east line of Section 26 at a point 300 feet north of the high waterline; thence northeasterly 1,740 feet to a point 300 feet north of the high waterline; thence southeasterly about 1,810 feet to the projected east line of the former Baldwin property at a point 300 feet north of the high waterline; and thence south 300 feet to the high waterline.

- (2) **Camp Richardson, under the control of the Forest Service, Department of Agriculture.** The waters of Lake Tahoe shoreward of a line described as follows: Beginning at the southeasterly corner of sec. 25, T. 13 N., R. 17 E., Mount Diablo Base and Meridian; thence north 410 feet along the east line of sec. 25; thence northwesterly 95 feet to the high waterline which is the true point of beginning; thence north 130 feet; thence southeasterly 565 feet; and thence south 130 feet to the high waterline.
- (3) **Pope Beach, under the control of the Forest Service, Department of Agriculture.** The waters of Lake Tahoe shoreward of a line described as follows: Beginning at the intersection of the high waterline with the west line of the former Pope property, about 750 feet westerly of the west boundary line of Lot 2, Section 6, Township 12 North (Mount Diablo Base Line), Range 18 East (Mount Diablo Meridian); thence north 300 feet; thence southeasterly 4,200 feet to a point 300 feet north of the high waterline; and thence south 300 feet to the high waterline.
- (4) **El Dorado County Beach.** The waters of Lake Tahoe shoreward of a line described as follows: Beginning at the intersection of the high waterline with the west boundary line of Lot 1, Section 32, Township 13 North (Mount Diablo Base Line), Range 18 East (Mount Diablo Meridian); thence north 500 feet; thence northeasterly about 1,350 feet to the projected east line of Lot 1 at a point 500 feet north of the high waterline; and thence south 500 feet to the high waterline.
- (b) **The regulations.** No sail or machine-propelled watercraft, except vessels owned or controlled by the U.S. Coast Guard, shall navigate or anchor in the restricted area.

§ 162.215 Lake Tahoe, Nev.; restricted area adjacent to Nevada Beach.

- (a) **The restricted area.** The waters of Lake Tahoe shoreward of a line described as follows: Beginning at the intersection of the high waterline with a line projected in a general southerly direction 200 feet from a point lying 310 feet west of section corner common to section 15, 16, 21, and 22, Township 13 North (Mount Diablo Base Line), Range 18 East (Mount Diablo Meridian); thence 300 feet lakeward at right angles to the high waterline; thence southeasterly approximately 2,170 feet to the projected south boundary line of the Forest Service property at a point 300 feet west of the high waterline; and thence east 300 feet to the high water line.
- (b) **The regulations.** No sail or motor propelled watercraft, except vessels owned or controlled by the United States Government and vessels duly authorized by the United States Coast Guard, shall navigate or anchor in the restricted area.

§ 162.220 Hoover Dam, Lake Mead, and Lake Mohave (Colorado River), Ariz.-Nev.

- (a) **Lake Mead and Lake Mohave; restricted areas —**
 - (1) **The areas.** That portion of Lake Mead extending 700 feet upstream of the axis of Hoover Dam and that portion of Lake Mohave (Colorado River) extending 4,500 feet downstream of the axis of Hoover Dam.
 - (2) **The regulations.** The restricted areas shall be closed to navigation and other use by the general public. Only vessels owned by or controlled by the U.S. Government and the States of Arizona and Nevada shall navigate or anchor in the restricted areas: *Provided, however,* The Regional Director, Region 3, U.S. Bureau of Reclamation, Boulder City, Nev., may authorize, by written permit, individuals or groups to navigate or anchor in the restricted areas when it is deemed in the public interest. Copies of said permits must be furnished to the enforcing agencies.

- (b) **Lake Mead; speed regulation.** In that portion of Lake Mead extending 300 feet upstream of the restricted area described in paragraph (a) of this section, a maximum speed of 5 miles per hour shall not be exceeded.
- (c) **Supervision.** The regulations in this section shall be supervised by the District Commander, USCG Southwest District.

[CGD 75-082, 42 FR 51759, Sept. 29, 1977, as amended by USCG-2008-0179, 73 FR 35016, June 19, 2008]

§ 162.225 Columbia and Willamette Rivers, Washington and Oregon; administration and navigation.

- (a) **Supervision.** The District Commander, USCG Northwest District, has certain administrative supervision over the Columbia and Willamette Rivers, and is charged with the enforcement under his direction of emergency regulations to govern navigation of these streams.
- (b) **Speed.** During very high water stages (usually 25 feet or more on the Vancouver, Washington, gage) when lives, floating plant or major shore installations are endangered, the District Commander shall have authority to prescribe such temporary speed regulations as he may deem necessary for the public safety. During critical periods of freshets under 25 feet on the Vancouver, Washington, gage when construction is in progress, rehabilitation, or other unusual emergency makes a major shore installation susceptible to loss or major damage from wave action, the District Commander shall have authority to prescribe for a particular limited reach of the river as appropriate such temporary speed regulations as he may deem necessary to protect the integrity of such structure. All speed regulations prescribed by the District Commander shall be obeyed for the duration of the emergency and shall be terminated at the earliest practicable time that improved stream conditions permit.

§ 162.230 Columbia River, Wash.

- (a) **Grand Coulee Dam discharge channel; restricted area —**
 - (1) **The area.** That portion of the Columbia River between Grand Coulee Dam (situated at river mile 596.6) and river mile 593.7.
 - (2) **The regulations.**
 - (i) No vessel shall enter or navigate within the area without permission from the enforcing agency.
 - (ii) The regulation in this section shall be enforced by the Chief, Power Field Division, Columbia Basin Project, U.S. Department of the Interior, Coulee Dam, Washington.

§ 162.235 Puget Sound Area, Wash.

- (a) **Waterway connecting Port Townsend and Oak Bay; use, administration, and navigation —**
 - (1) **Works to which regulations apply.** The “canal grounds” when used in this paragraph shall mean that area between the south end of the jetties in Oak Bay and the northerly end of the dredge channel approximately 400 yards northwest of Port Townsend Canal Light. The “canal” is the water lying between these limits and the banks containing the same.
 - (2) **Speed.** The speed limit within the canal grounds shall not exceed five miles per hour.

- (3) **Signals.** All boats desiring to use the canal shall give one long and one short whistle. Southbound boats shall sound the signal within 600 yards of Port Townsend Canal Light. Northbound boats shall sound this signal at least 500 feet south from the end of the jetties in Oak bay. If no other boat answers the signal the first boat shall have the right of way through the canal. Any approaching boat that is in the canal shall answer by giving the same signal and the first boat shall not enter the canal until the second boat shall have passed through the canal. In the case of boats going in the same direction the boat which is in the canal shall not answer the signal of the boat desiring to enter.
- (4) **Passing.** Steamers shall not under any circumstances attempt to pass each other in the canal, either when going in the same or opposite directions.
- (5) **Anchoring.** No steamers or boats shall anchor or tie up within the canal grounds unless they are well over on the tide flats to the west of the dredged channel, and off the right of way belonging to the United States.
- (6) **Tows.** No tow shall enter or pass through the canal with a towline more than 200 feet in length.
- (7) **Delaying traffic.** No person shall cause or permit any vessel or boat of which he is in charge, or on which he is employed, to obstruct the canal in any way or delay in passing through it.

(b) **West Waterway, Seattle Harbor; navigation.**

- (1) The movement of vessels of 250 gross tons or over and all vessels with tows of any kind through the narrow section of West Waterway between the bend at Fisher's Flour Mill dock and the bend at the junction of East Waterway with Duwamish Waterway, and through the draws of the City of Seattle and Northern Pacific Railway Company bridges crossing this narrow section, shall be governed by red and green traffic signal lights mounted on the north and south sides of the west tower of the City Light power crossing at West Spokane Street.
- (2) Two green lights, one vertically above the other, displayed ahead of a vessel, shall indicate that the waterway is clear. Two red lights, one vertically above the other, displayed ahead of a vessel, shall indicate that the waterway is not clear.
- (3) A vessel approaching the narrow section and drawbridges from either end of the waterway shall give one long blast of a whistle and shall not enter the narrow section until green lights are displayed.
- (4) One vessel may follow another vessel in either direction, but the channel shall not be kept open in the same direction for an unreasonable time if a vessel is waiting at the other end.
- (5) Tugs, launches, and small craft shall keep close to one side of the channel when vessels or boats with tows are passing.
- (6) All craft shall proceed with caution. The display of a green light is not a guarantee that the channel is clear of traffic, and neither the United States nor the City of Seattle will be responsible for any damage to vessels or other property which may be chargeable to mistakes in the operation of the signal lights or to their failure to operate.

Note: The Corps of Engineers also has regulations dealing with this section in 33 CFR part 207.

[CGD 75-082, 42 FR 51759, Sept. 29, 1977, as amended by USCG-2008-0179, 73 FR 35016, June 19, 2008]

§ 162.240 Tongass Narrows, Alaska; navigation.

- (a) **Definitions.** The term “Tongass Narrows” includes the body of water lying between Revillagigedo Channel and Guard Island in Clarence Strait.
- (b) No vessel, except for public law enforcement and emergency response vessels, floatplanes during landings and take-offs, and vessels of 23 feet registered length or less, shall exceed a speed of 7 knots in the region of Tongass Narrows bounded to the north by Tongass Narrows Buoy 9 and to the south by Tongass Narrows East Channel Regulatory marker at position 55°19'22.0" N, 131°36'40.5" W and Tongass Narrows West Channel Regulatory marker at position 55°19'28.5" N, 131°39'09.7" W, respectively.
- (c) No vessel shall while moored or at anchor, or by slow passage or otherwise while underway, unreasonably obstruct the free passage and progress of other vessels.
- (d) No vessel shall moor or anchor to any structure of the United States other than mooring piers, wharves, and floats without the consent of the Commander, Sector Southeast Alaska.

[CGD 75-082, 42 FR 51759, Sept. 29, 1977]

Editorial Note: For FEDERAL REGISTER citations affecting § 162.240, see the List of CFR Sections Affected, which appears in the Finding Aids section of the printed volume and at www.govinfo.gov.

§ 162.245 Kenai River, Kenai, Alaska; use, administration, and navigation.

- (a) **The area.** The main channel area of the river, having a width of 150 feet, beginning at a point directly offshore from the centerline of the city dock and extending about 2,200 feet upstream to a point 200 feet upstream from the Inlet Co. dock.
- (b) **The regulations.**
 - (1) Vessels may navigate, anchor, or moor within the area until such time as notification is received or observation is made of intended passage to or from the docking areas.
 - (2) Notice of anticipated passage of towboats and barges shall be indicated 24 hours in advance by display of a red flag by the Inlet Co. from its warehouse.

§ 162.250 Port Alexander, Alaska; speed of vessels.

- (a) **Definition.** The term “Port Alexander” includes the entire inlet from its head to its entrance from Chatham Strait.
- (b) **Speed.** The speed of all vessels of 5 tons or more gross, ships register, shall not exceed 3 miles per hour either in entering, leaving, or navigating within Port Alexander, Alaska.

[CGD 75-082, 42 FR 51759, Sept. 29, 1977, as amended by CGD 82-039, 47 FR 27266, June 24, 1982]

§ 162.255 Wrangell Narrows, Alaska; use, administration, and navigation.

- (a) **Definitions.**
 - (1) The term “Wrangell Narrows” includes the entire body of water between Wrangell Narrows North Entrance Lighted Bell Buoy 63 and Midway Rock Light.

(2) The term “raft section” refers to a standard raft of logs or piling securely fastened together for long towing in Alaska inland waters in the manner customary with the local logging interests, *i.e.*, with booms, swifters, and tail sticks. It normally contains 30,000 to 70,000 feet board measure of logs or piling and has a width of 45 to 60 feet and a length of 75 to 100 feet.

(b) **Speed restrictions.** No vessel shall exceed a speed of seven (7) knots in the vicinity of Petersburg, between Wrangell Narrows Channel Light 58 and Wrangell Narrows Lighted Buoy 60.

(c) **Tow channel.** The following route shall be taken by all tows passing through Wrangell Narrows when the towboat has a draft of 9 feet or less (northbound, read down; southbound, read up):

East of Battery Islets:

East of Tow Channel Buoy 1 TC.

East of Tow Channel Buoy 3 TC.

West of Tow Channel Buoy 4 TC.

East of Colorado Reef:

East of Wrangell Narrows Channel Light 21.

West of Wrangell Narrows Channel Lighted Buoy 25.

East of Tow Channel Buoy 5 TC.

East of Tow Channel Buoy 7 TC.

West of Petersburg:

East of Wrangell Narrows Channel Light 54 Fr.

East of Wrangell Narrows Channel Light 56 Qk FR.

East of Wrangell Narrows Channel Light 58 Fr., thence proceeding to west side of channel and leaving Wrangell Narrows by making passage between Wrangell Narrows Channel Daybeacon 61 and Wrangell Narrows North Entrance Lighted Bell Buoy 63 F.

(d) **Size of tows.** The maximum tows permitted shall be one pile driver, or three units of other towable equipment or seven raft sections.

(e) **Arrangement of tows.**

(1) No towline or aggregate of towlines between towboat and separated pieces shall exceed 150 feet in length.

(2) Raft and barge tows of more than one unit shall not exceed 65 feet in width overall. Single barge tows shall not exceed 100 feet in width overall.

(3) Tows other than rafts shall be taken alongside the towboat whenever possible.

(f) **Anchorage.** Vessels may anchor in the anchorage basin in the vicinity of Anchor Point. No craft or tow shall be anchored in Wrangell Narrows in either the main ship channel or the towing channel, nor shall any craft or tow be anchored so that it can swing into either of these channels.

(g) **Disabled craft.** Disabled craft in a condition of absolute necessity are exempt from the regulations in this section.

[CGD 75-082, 42 FR 51759, Sept. 29, 1977, as amended by CGD 82-039, 47 FR 27266, June 24, 1982; CGD 94-026, 60 FR 63624, Dec. 12, 1995]

§ 162.260 Channel leading to San Juan Harbor, P.R.; use, administration, and navigation.

- (a) Steamers passing dredge engaged in improving the channel shall not have a speed greater than 4 miles an hour, and the propelling machinery shall be stopped when crossing the lines to the dredge anchors.
- (b) Vessels using the channel shall pass the dredge on the side designated from the dredge by the signals prescribed in paragraph (c) of this section.
- (c) Dredge shall display the red flag by day and four white lights hung in a vertical line by night to indicate the passing side.
- (d) Vessels shall not anchor on the ranges of stakes or other marks placed for the guidance of the dredge, nor in such a manner as to obstruct the channel for passing vessels.
- (e) Vessels shall not run over or disturb stake, lanterns, or other marks placed for the guidance of the dredge.
- (f) Dredges working in the prosecution of the work shall not obstruct the channel unnecessarily.
- (g) The dredge will slack lines running across the channel from the dredge on the passing side, for passing vessels, when notified by signal, with whistle or horn.
- (h) The position of anchors of the dredge shall be marked by buoys plainly visible to passing vessels.

§ 162.270 Restricted areas in vicinity of Maritime Administration Reserve Fleets.

- (a) The regulations in this section shall govern the use and navigation of waters in the vicinity of the following National Defense Reserve Fleets of the Maritime Administration, Department of Transportation:
 - (1) James River Reserve Fleet, Fort Eustis, Virginia.
 - (2) Beaumont Reserve Fleet, Neches River near Beaumont, Texas.
 - (3) Suisun Bay Reserve Fleet near Benicia, California.
- (b) No vessels or other watercraft, except those owned or controlled by the United States Government, shall cruise or anchor between Reserve Fleet units within 500 feet of the end vessels in each Reserve Fleet unit, or within 500 feet of the extreme units of the fleets, unless specific permission to do so has first been granted in each case by the enforcing agency.
- (c) The regulations in this section shall be enforced by the respective Fleet Superintendents and such agencies as they may designate.

[CGD 75-082, 42 FR 51759, Sept. 29, 1977, as amended by CGD 86-053, 51 FR 43742, Dec. 4, 1986; USCG-2011-0257, 76 FR 31838, June 2, 2011]